

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 3638

By: Gise

COMMITTEE SUBSTITUTE

[food stamps - program - Department of Human
Services - State Department of Education - data -
benefits - implementation - participation -
measures - Summer Electronic Benefit Transfer
Program Revolving Fund - characteristics -
effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 241.5 of Title 56, unless there
is created a duplication in numbering, reads as follows:

A. Beginning with the 2027 program year, the State of Oklahoma
shall participate in the federal Summer Electronic Benefit Transfer
for Children ("Summer EBT") program as authorized pursuant to the
federal Consolidated Appropriations Act of 2023, to provide
supplemental nutrition assistance to eligible children during
periods when school is not in session.

1 B. The Department of Human Services shall administer the Summer
2 EBT program and shall submit all applications, plans, and other
3 documentation required by the United States Department of
4 Agriculture or any other federal agency necessary to implement and
5 administer the program in accordance with federal law.

6 C. The Department of Human Services shall coordinate with the
7 State Department of Education for the purpose of determining program
8 eligibility and facilitating efficient program administration.

9 D. The Department of Human Services and the State Department of
10 Education are authorized to share data as necessary to implement and
11 administer the Summer EBT program, subject to applicable state and
12 federal privacy and confidentiality laws.

13 E. To the maximum extent permitted by federal law, benefits
14 issued under the Summer EBT program shall be subject to the same
15 eligible food restrictions applicable to the Supplemental Nutrition
16 Assistance Program in Oklahoma. The Department of Human Services
17 shall seek any necessary federal approvals to align program
18 restrictions with state policy.

19 F. Implementation of the Summer EBT program shall be subject to
20 the availability of funds appropriated by the Legislature for the
21 purpose of administering the program. Should the federal share of
22 costs for administering the program be reduced from the level
23 approved for the 2027 program year, the State of Oklahoma shall not
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1 be required to continue participation unless otherwise authorized by
2 the Legislature.

3 G. The Department of Human Services shall implement program
4 integrity measures consistent with federal requirements, including
5 eligibility verification, data matching, and the prevention,
6 detection, and recovery of improper payments.

7 SECTION 2. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 241.6 of Title 56, unless there
9 is created a duplication in numbering, reads as follows:

10 There is hereby created in the State Treasury a revolving fund
11 for the Department of Human Services to be designated the "Summer
12 Electronic Benefit Transfer Program Revolving Fund". The fund shall
13 be a continuing fund, not subject to fiscal year limitations, and
14 shall consist of all monies received by the Department from funding
15 sources, including, but not limited to, federal funds, state
16 appropriations, tribal government contributions, municipal or
17 political subdivision funds, nonprofit or charitable grants, private
18 or personal contributions, and other public or private sources
19 authorized by law. All monies accruing to the credit of said fund
20 are hereby appropriated and may be budgeted and expended by the
21 Department for the purpose of funding administrative costs
22 associated with the Summer Electronic Benefit Transfer program.
23 Expenditures from said fund shall be made upon warrants issued by
24 the State Treasurer against claims filed as prescribed by law with

1 the Director of the Office of Management and Enterprise Services for
2 approval and payment.

3 SECTION 3. This act shall become effective November 1, 2026.

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